No. R. 286 **31 March 2011**

SOCIAL ASSISTANCE ACT, 2004 AS AMENDED

AMENDMENT: REGULATIONS RELATING TO THE APPLICATION FOR AND PAYMENT OF SOCIAL ASSISTANCE AND THE REQUIREMENTS OR CONDITIONS IN RESPECT OF ELIGIBILITY FOR SOCIAL ASSISTANCE

The Minister of Social Development has, in terms of Section 32 of the Social Assistance Act, 2004 (Act No. 13 of 2004) as amended, made the regulations in the Schedule.

SCHEDULE

1. In these regulations "the Regulations" means the regulations published by Government Notice No. R898 of 22 August 2008, as amended by Government Notice No. 67 of 28 January 2009, Government Notice No. 208 of 26 February 2009, Government Notice No. 591 of 29 May 2009, Government Notice No. 1252 of 31 December 2009 and Government Notice No. 193 of 12 March 2010.

Substitution of Annexure A of the Regulations

2. Paragraph 2 of Annexure A is hereby substituted for the following paragraph:

(a) The formula for the determination of the value of the older persons grant, disability grant and war veterans grant to be paid to an applicant is -

$$D = 1,4A - 0,4B$$

where –

(i) A = the maximum social grant payable per annum as approved;

(ii) B = the annual income of the applicant in accordance with regulation 19, which shall include the income from assets as determined in regulation 19(3), after permissible deductions contemplated in regulation 20 are effected;

(iii) D = annual social grant amount payable, which must not exceed the amount equal to A.

3. Paragraph 6 of Annexure A is hereby substituted for the following paragraph:

(a) No grant may be paid to any person not in a spousal relationship whose total assets as contemplated in regulation 19 exceeds 55 times A or to any person in a spousal relationship whose total assets exceeds 110 times

Commencement

4. These regulations will come into effect on the 01 April 2011